

24STCV16255 24STCV16255

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Case Number: 24STCV16255 Hearing Date: August 27, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

27, 2026 TRIAL

DATE: Not set

CASE: Joshua Ebow v. Gateways Hospital and Mental Health Center, et al.

CASE NO.: 24STCV16255

DEMURRERS

WITH MOTIONS TO STRIKE

In 2021, Plaintiff, Joshua Ebow, was admitted to Gateways Hospital and Mental Health Center pursuant to a court order. Plaintiff was admitted on the premise that antipsychotic medication would allow him to stand trial in criminal proceedings. Plaintiff alleges that he was in good health at the time of admission. However, after being administered the psychotropic medication, Plaintiff has suffered permanent injuries.

I. INTRODUCTION

On June 24, 2024, Plaintiff commenced this action.

On June 25, 2025, Plaintiff

obtained leave to file the Second Amended Complaint.

On June 26,

2025, Plaintiff filed the Verified Second Amended Complaint

("SAC") against Defendants, Gateways Hospital and Mental Health Center, Gateways CONREP Administration, and Gateways Satellite (collectively, "Gateways"), Dr. Imani J. Walker, Psy.D ("Dr. Walker), Dr. Diana Yee, Psy.D ("Dr. Yee"), Dr. Cynthia E. Lermond Psy.D. ("Dr. Lermond"), Dr. Robert Nasic, Psy.D. ("Dr. Nasic"), and Tamanna Shah, Psy.D. ("Dr. Shah"). The SAC alleges causes of action for (1) medical malpractice, (2) gross professional negligence, (3) negligence, (4) battery, (5) intentional infliction of severe mental and emotional distress, and (6) negligent infliction of severe mental and emotional distress.

On May 20,

2026, the court sustained in part Gateways' demurrer to the SAC and sustained Individual Defendants' (Dr. Walker, Dr. Yee, Dr. Lermond, Dr. Nasic, and Dr. Shah) demurrers to the SAC with leave to amend.

On May 26, 2026,

Plaintiff filed the Third Amended Complaint ("TAC") against Defendants for (1) medical malpractice, (2) elder or dependent adult abuse, (3) battery (nonconsensual forced medication), and (4) intentional infliction emotional distress.

On June 18, 2026, Defendants filed six separate demurrers and motions to strike.

On August 10, 2026, Plaintiff filed oppositions.

On August 13, 2026, Defendants filed replies.

Because the demurrers raise the same arguments, the court considers the filings together.

II. JUDICIAL

NOTICE

Gateways

requests judicial notice of three documents.

The request is GRANTED.

III. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) "Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice." (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

IV. DISCUSSION

Defendants demur to the TAC on the following grounds: (1) the second, third, and fourth causes of action fail to state facts sufficient to constitute a cause of action against any defendant; (2) Plaintiff lacks competency to bring this suit on his own behalf.

A. Elder or Dependent Adult Abuse (2nd COA)

To plead a cause of action for elder abuse under the Elder Abuse Act based on neglect, a plaintiff must allege facts establishing that: (1) the defendant had a substantial caretaking or custodial relationship with plaintiff, involving ongoing responsibility for her basic needs, which an able-bodied and fully competent adult would ordinarily be capable of managing without assistance, (2) that plaintiff was 65 years of age or older or a dependent adult while she was in defendant's care or custody, (3) that the employer defendant's employee failed to use the degree of care that a reasonable person in the same situation would have used in providing for plaintiff's basic needs, including protecting plaintiff from health and safety hazards, (4) that plaintiff was harmed, and (5) that the employer defendant's employee's conduct was a substantial factor in causing plaintiff's harm. (CACI No. 3103; see also Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 405-407.) A cause of action under the Elder Abuse Act must be alleged with particularity. (See Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790 (Covenant Care).) Neglect, for purposes of the elder abuse

act, refers to the “failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.” (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 157-58, citing Welf. & Inst. Code, § 15610.57, subd. (b).) (b).)

Here, the TAC alleges that “Defendants engaged in reckless neglect by knowingly subjecting Plaintiff to dangerous polypharmacy without monitoring, adjustment, or informed consent.”

(TAC, ¶ 68.) And further, “Defendants engaged in neglect and reckless withholding of appropriate medical care.” (TAC, ¶ 69.) These allegations make clear the second cause of action is based upon medical treatment.

As noted in Delaney v. Baker (1999)

20 Cal.4th 23, 34 “ ‘neglect’ as defined in former section 15610.57 and used in section 15657 does not refer to the performance of medical services in a manner inferior to the knowledge, skill and care ordinarily possessed and employed by members of the profession in good standing [citation], but rather to the failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.” Assuming, arguendo, that the TAC pleaded a custodial relationship, the second cause of action has nothing to do with Defendants’ failure to carry out their custodial obligations, i.e., assisting in personal hygiene, or in the provision of food, clothing, or shelter. The TAC does not state a claim for elder or dependent adult abuse.

Accordingly, the demurrers to the second cause of action are SUSTAINED. Leave to amend is DENIED.

B.

Battery (Nonconsensual Forced Medication) (3rd COA)

To establish a claim for medical battery, a plaintiff must allege that (1) the defendant performed a medical procedure without consent or that plaintiff consented to one medical procedure, but performed a substantially different medical procedure, (2) that plaintiff was harmed, and (3) that conduct was a substantial factor in causing plaintiff’s harm. (CACI No. 530A.) To establish a claim for failure to obtain informed consent, the plaintiff alleges that the defendant (1) performed a medical procedure, (2) that defendant did

not disclose to plaintiff the important potential results and risks of [and alternatives to] the medical procedure, (3) that a reasonable person in plaintiff's position would not have agreed to the medical procedure if that person had been adequately informed; and (4) that plaintiff was harmed as a result or risk that defendant should have explained. (CACI No. 533.)

Here, the TAC is premised on the allegation that "Plaintiff did not provide informed consent to the dangerous polypharmacy administered by Defendants." (TAC, ¶ 77.) However, Plaintiff was not in Gateways' care on his own volition. Elsewhere in the TAC, Plaintiff alleges that that he was committed to Gateways pursuant to court order. (TAC, ¶¶ 1, 25.) Past pleadings confirm that Plaintiff was admitted to Gateways to be administered psychotropic medication in order to stand trial in criminal proceedings. (See SAC, ¶ 15.) Plaintiff cannot state a battery claim based on the absence of informed consent because Plaintiff could neither give nor withhold consent in the first instance.

As to Dr. Yee, the TAC also alleges for the first time that Dr. Yee performed unconsented "energy transfer rites" on Plaintiff's body. (See TAC, ¶ 91.) The TAC does not shed any light as to how the energy transfer rite is a medical procedure nor where on Plaintiff's body it was performed. Critically, the TAC does not allege that Plaintiff was harmed as a result of the energy transfer rite. The third cause of action fails.

The demurrers to the third cause of action are SUSTAINED. Leave to amend is DENIED.

C. Intentional Infliction of Emotional Distress (4th COA)

The elements of an intentional infliction of emotional distress cause of action are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress; (3) severe emotional suffering; and (4) actual and proximate causation of the emotional distress. (See *Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780; *Wilson v. Hynek* (2012) 207 Cal.App.4th 999, 1009.) To satisfy the element of extreme and outrageous conduct, defendant's conduct "must be so extreme as to exceed all bounds of

that usually tolerated in a civilized society.” (Moncada, 221 Cal.App.4th at p. 780 (quoting Tererice v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883).)ﷲﷲ

Like the SAC, the TAC does not allege any conduct so extreme and outrageous to support a claim for intentional infliction of emotional distress. The TAC merely alleges the same conduct in support of this and every cause of action. Further, the only new allegation asserted in the TAC are the aforementioned “energy transfer rites” performed by Dr. Yee which fails for the same reason as the third cause of action: the absence of any alleged harm resulting from the “procedure.”

Accordingly, the demurrers to the fourth cause of action are SUSTAINED. Leave to amend is DENIED.

D.
Competency to Sue

In the notice of each demurrer, Defendants state that Plaintiff, as alleged, is not competent to prosecute this action and therefore lacks standing. In the argument section, Defendants’ argument shifts. Therein, Defendants argue that a guardian ad litem must be appointed for Plaintiff.

Here, the TAC alleges that Plaintiff was a “court-ordered psychiatric patient” (TAC ¶¶ 1, 4, 25) who “suffer[ed] from mental health conditions that necessitated court-ordered competency training and restoration” (TAC ¶¶ 3, 7). Plaintiff also alleges that the defendants “knowingly escalated medications to render Plaintiff ‘competent’” (TAC ¶ 101), which suggests that Plaintiff is incompetent. These allegations merely raise doubt about a plaintiff’s competency. It does establish from the face of the pleading that Plaintiff lacks legal capacity to sue. This is not grounds for demurrer.

However,
pursuant to the court’s duty to act, sua sponte, on concerns about a party’s incompetency, the court will set a separate OSC Re: Appointment of Guardian Ad Litem and order Plaintiff to submit a declaration explaining his current

competency to prosecute this litigation.

V. CONCLUSION

The demurrers are SUSTAINED.

Leave to amend is DENIED.

The motions
to strike are MOOT.

Defendants are
ordered to serve and file their answers to the Third Amended Complaint within 10
days of this order.

The court
will set an OSC Re: Appointment of Guardian Ad Litem on a date to be discussed
at the hearing.

Defendants are
ordered to give notice, unless waived.

Dated: August 27, 2026

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⸮ Brock T. Hammond

⸮ Judge of the Superior Court⸮